



OUTSOURCED SERVICES ADDENDUM

This Outsourced Services Addendum (the “OSA”) is entered into between [REDACTED] Inc., a Delaware Corporation (“[REDACTED]” and [REDACTED]), a Private Limited company incorporated in England & Wales (“**Supplier**”) as an addendum to the Master Services Agreement dated 6/4/2023 between [REDACTED] and Supplier (the “**Agreement**”). All capitalized terms not defined in this OSA have the meanings set forth in the Agreement. In the event of a conflict or ambiguity between the Agreement and the OSA, the terms of the OSA will supersede and control.

1. **Definitions.** When used in this OSA, the following terms have the following meaning. Any capitalized terms not defined in this OSA have the meaning given in the Agreement.
 - a. “**DPA**” means any data processing agreement or data processing addendum.
 - b. “**Proprietary Rights**” means any trademarks, trade secrets, copyrights, patents and any other intellectual property rights.
 - c. “**Regulatory Authority**” means the European Banking Authority (“**EBA**”), Monetary Authority of Singapore (“**MAS**”), Bank of Thailand (“**BOT**”), UK Financial Conduct Authority (“**FCA**”), Central Bank of Ireland, Bank Negara Malaysia (“**BNM**”), Brazilian Central Bank (“**BCB**”), Reserve Bank of India (“**RBI**”), the Australian Securities and Investments Commission, including any successor of any of these regulatory bodies, and any other governmental department, committee, or body that has statutory standing to supervise, regulate, investigate or audit Supplier’s performance of the Services.
 - d. “**Resolution Event**” means [REDACTED] or its Affiliate’s (here, [REDACTED] Affiliate means such Affiliate receiving Services under the applicable SOW), commencement, continuation or completion of a bankruptcy, insolvency, liquidation, receivership or unwinding or any other resolution proceeding with the aim of safely and effectively resolving a financial institution or its group in financial distress, including under applicable bankruptcy law with respect to [REDACTED] or any Affiliate.
 - e. “[REDACTED] **Data**” means all data (a) collected, received, stored or maintained by the Supplier in connection with Supplier’s performance of its obligations under this Agreement (including data or information collected by or associated with any cookies), (b) provided by [REDACTED] to Supplier, or (c) derived from (a) or (b).
 - f. “**Sub-Outsourcing**” means the delegation by Supplier of the performance of any of the Services to a Subcontractor.
 - g. “**Work Product**” means any Deliverable specially developed for [REDACTED] in connection with Services, whether developed by Supplier or any of its Personnel, either alone or with others, and whether completed or in-progress.
2. [REDACTED] **Data.** Supplier is a data processor to [REDACTED] and will act on behalf and in accordance with the instructions of [REDACTED] in performing the Services. Supplier will use [REDACTED] Data for the sole purpose of performing the Services and in accordance with all applicable data protection laws and regulations and any DPA between the Parties. Supplier will process and store [REDACTED] Data only in the respective location(s) identified in the relevant SOW and will not transfer [REDACTED] Data to a different location without [REDACTED] prior written authorization.
3. **Reserved.**
4. **Reporting.** Upon [REDACTED] request, and in no event later than 30 days following [REDACTED] request, Supplier will provide periodic written reports to enable [REDACTED] to evaluate Supplier’s performance of the Services, which will include a measurement of Supplier’s performance measures against all metrics and service levels stated in the relevant SOW.
5. **Notice of Negative Impact.** Supplier will promptly notify [REDACTED] of any changed facts or circumstances that could materially limit Supplier’s ability to (a) perform the Services in accordance with any metric or service level set forth in the relevant SOW; (b) comply with

- Applicable Law; (c) comply with Supplier's confidentiality and/or data protection obligations to [REDACTED] or (d) remain solvent and operational (each of (a)-(d), a "**Negative Impact**" and the relevant notice, a "**Notice of Negative Impact**"). Upon learning of a Negative Impact, Supplier will immediately take action to mitigate potential harm to [REDACTED]. Upon [REDACTED] receipt of a Notice of Negative Impact, [REDACTED] may terminate the Agreement (including all SOWs), or the affected SOW(s), immediately upon written notice to Supplier, in which case Supplier will promptly refund to [REDACTED] the unearned portion of all prepaid fees or require Supplier to execute a Change Order to adjust the Services accordingly.
6. **Business Continuity Plan.** Supplier represents that it has implemented, or warrants that it will immediately implement, an industry-standard business continuity plan (a "**BCP**") to ensure that a failure by Supplier's business-critical service providers will not cause a disruption or degradation of the Services. Upon [REDACTED] request, Supplier will provide to [REDACTED] a copy of its BCP. At least once annually, Supplier will review and assess its BCP (the "**Annual BCP Review**"). Following each Annual BCP Review, Supplier will provide to [REDACTED] a written report summarizing the findings, which must identify any necessary remediation steps and specific date(s) by which Supplier will complete these remediation steps. At any point, Supplier will notify [REDACTED] of any substantial changes to its BCP.
 7. **Regulatory Audit.** Supplier will support [REDACTED] compliance with obligations to the Regulatory Authorities, including promptly producing documents in response to requests from [REDACTED] or the Regulatory Authorities to evidence Supplier's compliance programs, security and control environment, financial and business records, transaction records, and other materials and information relating to the Services. Upon reasonable notice, Supplier will grant [REDACTED] and the Regulatory Authority(ies), as applicable, the unrestricted right to access and inspect: (a) Supplier's physical location from where Services are provided to [REDACTED] and systems used to perform the Services, including relevant devices, networks, applications, and operational service providers and procedures used to support any part of the Services; and (b) Supplier's internal or external audit reports regarding Supplier's physical, technical, and organizational safeguards applicable to performance of the Services (a "**Regulatory Audit**"). For the sake of clarity, these audits will be performed in line with the terms and conditions specified under Clause 7 Records, Audits and Inspections of the Master Service Agreement.
 8. **Resolution Event.** Following a Resolution Event, Supplier will continue to provide Services under the Agreement and any current SOW(s) as long as (a) Supplier's continued performance of Services is permitted by law; (b) the Resolution Event does not prohibit [REDACTED] from complying with its payment obligations under the Agreement; and (c) [REDACTED] identifies Supplier as critical vendor in the formal proceedings with respect to the Resolution Event.
 9. **Reserved.**
 10. **Off-boarding the Services.** Upon expiration or termination of the Agreement or relevant SOW(s), Supplier will, upon [REDACTED] request, reasonably cooperate to transfer the Services and any relevant [REDACTED] Data in accordance with [REDACTED] instructions (including as to timeline) to [REDACTED] or an alternate [REDACTED] service provider, subject to [REDACTED] payment of Service Fees for Services and any other mutually agreed upon fees for other services, (the period after termination/expiration during which Supplier transfers the Services/[REDACTED] Data, the "**Transition Period**").
 11. **Subcontractors.** Supplier will not subcontract or Sub-Outsource any Services, or delegate any of its obligations, to any third party (collectively, "**Subcontractors**") without [REDACTED] prior written consent. [REDACTED] may grant or withhold its consent in its sole discretion. If [REDACTED] so consents, then Supplier will oversee the Subcontractor(s) and ensure that all Subcontractors are bound by and comply with the terms of the Agreement, this OSA and the relevant SOW(s). Notwithstanding the existence or terms of any subcontract, Supplier is responsible for the full performance of the Services and for its subcontractors' compliance with the terms of the Agreement and this OSA.
 12. **Payment Transactions.** If Supplier receives or stores any [REDACTED] Data or performs Services related to payment transactions, Supplier will, upon [REDACTED] request, provide to [REDACTED] the information necessary to identify the final recipient of the funds for the purpose of (a) demonstrating Supplier's compliance with anti-money laundering laws; or (b) preventing money laundering or terrorist financing.
 13. **Reserved.**

Dated: the date of last signature below

[REDACTED]
DocuSigned by:
Behrang Winder
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Operations
Date: 4/5/2023

[REDACTED]
DocuSigned by:
Nimesh Akhauri
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
Date: 4/6/2023

DS
Sayali